PETITION - CLEAR A CASE AFTER COMPLETING PRETRIAL DIVERSION

IN THE ..... COURT
(The county criminal, circuit or general sessions court having jurisdiction in the previous action - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:
.....

EXPUNCTION AFTER SUCCESSFUL COMPLETION OF PRETRIAL DIVERSION, T.C.A. Sec. 40-32-106(D)

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under T.C.A. Sec. 40-32-106(d)(1); T.C.A. Sec. 40-32-106(d)(2); T.C.A. Sec. 40-32-106(d)(3); T.C.A. Sec. Sec. 40-15-102 through 40-15-107; T.C.A. Sec. 40-15-105; T.C.A. Sec. 40-32-102(c); T.C.A. Sec. 8-21-401; T.C.A. Sec. 40-39-202 and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Prosecution is suspended under a memorandum of understanding with the district attorney general; the person does not plead guilty and is not found guilty. On successful completion the charges are dismissed, and under T.C.A. Sec. 40-32-106(d)(1) the person may then petition for expunction of the public records where the charges were dismissed as a result of successful completion of a pretrial diversion programme pursuant to Sec. Sec. 40-15-102 through 40-15-107. The provision is permissive as to filing and mandatory as to nothing: a petition is required and expunction is not automatic. Section 40-32-106(d)(3) requires the appropriate clerk's fee under Sec. 8-21-401, so unlike a straight dismissal this route is not free. Section 40-32-106(d)(2) bars expunction where the diverted offence was a sexual offence or a violent sexual offence as defined in Sec. 40-39-202. The TBI certificate under Sec. 40-32-102(c) is required here, because the exemption for Sec. 40-32-106 expunctions is expressly carved back where the expunction resulted from successful completion of pretrial diversion.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - originating court] Which court handled the case, and in which county? A separate filing is needed in each county where you have a case.

.....
.....

[C2 - docket number] What is the docket or case number?
.....
.....

[C3 - offence and disposition] What was the charge, and exactly how did the case end?
.....
.....

[C4 - disposition date] On what date did the case end?
.....
.....

[C5 - state control number] What is the state control number on your TBI criminal history? The expunction order cannot be completed without it.
.....
.....

[C6 - other convictions] List every other conviction you have anywhere, including federal and out-of-state.
.....
.....

[C7 - citizenship or clearance] Are you asking about this because of immigration, federal employment or a security clearance? Tennessee expunction does not reach federal records.
.....
.....

[C8 - diversion kind] Was it pretrial diversion, where you did not plead guilty and prosecution was suspended, or judicial diversion, where you entered a plea but no judgment of conviction was entered?
.....
.....

[C9 - successfully completed] Did you successfully complete everything the diversion required, and were the charges then dismissed?
.....
.....

[C10 - sexual offence] Was the offence a sexual offence or a violent sexual offence as Tennessee defines those for the registry? Those can be diverted but cannot be expunged. The definition includes unlawful photography under T.C.A. Sec. 39-13-605(a)(1) or (a)(3) for acts committed on or after July 1, 2025 (added to Sec. 40-39-202(20)(C) by 2025 Public Chapter 474, Sec. 10; act-date rule in Sec. 11), and grooming under Sec. 39-13-536 for acts committed on or after July 1, 2026 (added to Sec.

40-39-202(31)(Z) by 2026 Public Chapter 1021, Sec. 2; act-date rule in Sec. 3). Check the exact offence section and act date in your record. If either is uncertain, obtain legal review before filing.
.....
.....

[C11 - petition filed before] Have you already filed a petition to expunge this case?
.....
.....

[C12 - mou with da] Did you sign a memorandum of understanding with the district attorney general suspending prosecution, without pleading guilty?
.....
.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under T.C.A. Sec. 40-32-106(d)(1); T.C.A. Sec. 40-32-106(d)(2); T.C.A. Sec. 40-32-106(d)(3); T.C.A. Sec. Sec. 40-15-102 through 40-15-107; T.C.A. Sec. 40-15-105; T.C.A. Sec. 40-32-102(c); T.C.A. Sec. 8-21-401; T.C.A. Sec. 40-39-202.

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield
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CERTIFICATION AND FEE INSTRUCTIONS - CLEAR A CASE AFTER COMPLETING PRETRIAL DIVERSION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS COMPONENT COVERS

This is the certification and fee instructions component prescribed by the committed route contract.

ROUTE DIRECTIONS

- Confirm the statutory citation with the county clerk or district attorney general before every filing. Chapter 32 was reorganized by Public Chapter 268 of 2025, effective 2025-04-24, and codified by Public Chapter 608, the 2026 Code Bill, effective 2026-03-25. Clerks and published guidance may still use the pre-reorganization numbering: the Tennessee AOC's own expunction page is titled to say updated information is coming to reflect changes to T.C.A. Sec. 40-32-101 and still reasons from that section, which since 2025-04-24 has been nothing but a definitions section. A generated petition citing the wrong section is a rejection risk either way, so the packet is built to carry the current citation with the superseded one noted, and instructs the participant to confirm before filing.
- A petition is still required after diversion. Completing diversion dismisses the case but leaves it visible until a separate expunction petition is filed, and this is the second most common Tennessee misunderstanding after the not-automatic point.
- The order of expungement is marked Suspension of Prosecution Sec. 40-15-105 for a pretrial diversion case, which is how the TBI records it. The marking requirement is part of the court's instrument rather than the participant's.

FILING AND AFTER ORDER INSTRUCTIONS - CLEAR A CASE AFTER COMPLETING PRETRIAL DIVERSION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Expunction after successful completion of pretrial diversion, T.C.A. Sec. 40-32-106(d).

Prosecution is suspended under a memorandum of understanding with the district attorney general; the person does not plead guilty and is not found guilty. On successful completion the charges are dismissed, and under T.C.A. Sec. 40-32-106(d)(1) the person may then petition for expunction of the public records where the charges were dismissed as a result of successful completion of a pretrial diversion programme pursuant to Sec. Sec. 40-15-102 through 40-15-107. The provision is permissive as to filing and mandatory as to nothing: a petition is required and expunction is not automatic. Section 40-32-106(d)(3) requires the appropriate clerk's fee under Sec. 8-21-401, so unlike a straight dismissal this route is not free. Section 40-32-106(d)(2) bars expunction where the diverted offence was a sexual offence or a violent sexual offence as defined in Sec. 40-39-202. The TBI certificate under Sec. 40-32-102(c) is required here, because the exemption for Sec. 40-32-106 expunctions is expressly carved back where the expunction resulted from successful completion of pretrial diversion.

WHERE IT GOES

The county criminal, circuit or general sessions court having jurisdiction in the previous action
Confirmed on 2026-08-06 by direct inspection of both Tennessee AOC form indices: the self-help forms page publishes only divorce and order-of-protection forms, and the full forms-and-publications inventory covers appellate, divorce, general sessions civil, mediation, non-IV-D child support, order of protection, parenting plan and trial court forms, plus licensing forms. No expunction form appears in either. This is a negative finding established by inspection of the authoritative index, not by failure to search.
Venue: Statewide statute with originating-court venue. The petition goes to the court having jurisdiction in the previous action - the county criminal, circuit or general sessions court where the case originated. A person with cases in several counties files separately in each. There is no statewide participant form, so what varies locally is the clerk's own paperwork: the AOC directs filers to check with the court clerk because separate forms may be required for multiple charges.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: A clerk's fee applies. Section 40-32-106(d)(3) requires the appropriate clerk's fee pursuant to T.C.A. Sec. 8-21-401 for destroying the records, which is the asymmetry a participant should be warned about: diversion is a non-conviction outcome but it is not free, whereas a straight dismissal is. The amount is set by Sec. 8-21-401 and no figure is quoted here. Fee waiver as recorded: No indigency or fee-waiver provision appears in the reorganized Sec. Sec. 40-32-106 to 40-32-110. The TBI operates an unpublished indigency procedure for its separate diversion certificate fee, requiring a form signed by the judge that it supplies on request and does not publish. No waiver mechanism for the clerk's expunction fee was identified.

WHO MUST BE SERVED

Service as recorded: Through the clerk. The participant does not effect service. Notice as recorded: The clerk serves the petition on the district attorney general in the ordinary course.

WHAT THE RECORD SAYS YOU MUST KNOW

- Confirm the statutory citation with the county clerk or district attorney general before every filing. Chapter 32 was reorganized by Public Chapter 268 of 2025, effective 2025-04-24, and codified by Public Chapter 608, the 2026 Code Bill, effective 2026-03-25. Clerks and published guidance may still use the pre-reorganization numbering: the Tennessee AOC's own expunction page is titled to say updated information is coming to reflect changes to T.C.A. Sec. 40-32-101 and still reasons from that section, which since 2025-04-24 has been nothing but a definitions section. A generated petition citing the wrong section is a rejection risk either way, so the packet is built to carry the current citation with the superseded one noted, and instructs the participant to confirm before filing.
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WHEN TO STOP AND GET HELP INSTEAD OF FILING

- Any dispute with the district attorney general about eligibility, or any indication the office will oppose.
- Any other conviction anywhere on the record, including federal and out-of-state convictions that would be ineligible in Tennessee.
- Unpaid court costs, fines or restitution, which mean the sentence is not complete.
- Any DUI, sexual offence or registration matter.
- Any domestic violence or child-victim offence.
- Federal, military, tribal or out-of-state records, which Tennessee expunction does not reach.
- Immigration consequences, and any security-clearance question.
- Any question that turns on whether the county clerk uses the pre-2025 or the reorganized section numbering.
- The offence was a sexual offence or a violent sexual offence as defined in T.C.A. Sec. 40-39-202. It could be diverted but it cannot be expunged, and the participant needs to be told that plainly rather than sold a petition.
- The diversion was not successfully completed, or completion is disputed.
- The participant's goal involves federal employment or a security clearance, since a judicial diversion guilty plea may remain visible there.

THE PAGES IN THIS SET

- tn_pretrial_diversion-petition-1: the composed petition, on this route's own statutory ground (Clear a case after completing pretrial diversion)